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CA state assembly passes legislation to ban use of dangerous chemicals in food and beverages

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Recently, the California State Assembly passed first-of-its-kind legislation that would prohibit the use of certain dangerous and toxic chemicals in processed foods and drinks.

Authored by Assemblymember Jesse Gabriel (D-Woodland Hills), Assembly Bill (AB) 418 would prohibit the manufacture, sale, or distribution of any food product in California containing Red Dye No. 3, Titanium Dioxide, Potassium Bromate, Brominated Vegetable Oil, or Propyl Paraben.

These chemicals are already banned in the European Union (EU) and many other jurisdictions due to scientific research linking them to significant health harms, including cancer, reproductive issues, and behavioral and developmental issues in children.

"Today's strong vote is a major step forward in our effort to protect children and families in California from dangerous and toxic chemicals in our food supply," said Assemblymember Jesse Gabriel. "It's unacceptable that the U.S. is so far behind the rest of the world when it comes to banning these dangerous additives. We don't love our children any less than they do in Europe and it's not too much to ask food and beverage manufacturers to switch to the safer alternative ingredients that they already use in Europe and so many other nations around the globe."

Numerous scientific studies have demonstrated the connection between the chemical additives named in AB 418 and alarming health outcomes, including increased risk of cancer, behavioral issues in children, harm to the reproductive system, and damage to the immune system.

As a result, the EU and many other nations already have prohibited their use in food, and many major brands and manufacturers—including Coke, Pepsi, Gatorade, Dunkin Donuts, Papa John's Pizza, and Panera—have voluntarily stopped using these additives in their products.

Unfortunately, chemical companies in the U.S. have been able to exploit a major loophole in federal regulations to avoid meaningful independent review by the FDA of numerous food additives, thereby placing the U.S. far behind many other nations when it comes to food safety.

If signed into law, AB 418 would require companies to make modifications to the recipes for products sold in California and likely prompt a nationwide transition to safer alternatives.

"For decades, the FDA has failed to keep us safe from toxic food chemicals," said Scott Faber, EWG Senior Vice President for Government Affairs. "The chemical companies keep exploiting a loophole that allows for food additives that have not been adequately reviewed for safety by the FDA. And the FDA consistently fails to reassess chemicals, even in light of new science. The food and confectioners industries know the review process at the FDA is broken."

AB 418 now moves to the State Senate, where it is expected to be heard in committees in the coming weeks.

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